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Judgment Sheet

**IN THE LAHORE HIGH COURT, MULTAN BENCH
MULTAN
JUDICIAL DEPARTMENT**

Civil Revision No.243-D of 2025

**Niaz Hussain
VS
Fazal Fareed etc.**

JUDGMENT

Date of Hearing:-	16.09.2025.
Petitioner by:-	Rana A.D. Kamran, Advocate.
Respondents by:-	Nemo.

CH. MUHAMMAD IQBAL, J:- Through this Civil Revision, the petitioner has challenged the validity of judgment & decree dated 28.10.2023, passed by the learned Civil Judge, Vehari who decreed the suit for recovery of Rs.22,62,244/- (71594 Saudi Riyal) filed by the respondents and also assailed the judgment & decree dated 27.01.2025, passed by the learned District Judge, Vehari who dismissed the appeal of the petitioner.

2. Brief facts of the case as narrated in the plaint are that the respondents/plaintiffs filed a suit for recovery of Rs.22,62,244/- (71594 Saudi Riyal) against the petitioner/defendant contending therein that respondent/plaintiff No.1 and the petitioner/defendant are close relatives whereas respondent/plaintiff No.2 is close friend of the petitioner. Petitioner has been working as a contractor in Saudi Arabia for the last 20/25 years and the petitioner called the respondents/plaintiffs about 8/10

years ago at Saudi Arabia after providing them work Visa and the petitioner obtained contract from Al-Raji Trust of Building Makkah and provided the ceiling work to the respondents/plaintiffs. It was mutually agreed that the petitioner/defendant would take 50% profit and remaining 50% profit would be the share of the respondents/plaintiffs. The said work was completed in June 2017 then the petitioner gave some amount to the respondents and remaining profit i.e.71,594/- Saudi Riyal was outstanding against the petitioner. But the petitioner refused to pay the remaining amount which culminated into filing of suit by the respondents/plaintiffs against the petitioner in August 2017 in the Ministry of Justice, Public Court Makkah al-Mukarramah. The petitioner appeared in the said forum/ Court and took stance that he had paid all dues of labour to the respondents/plaintiffs, however, the petitioner admitted existence of oral business arrangement and 50% profit is pending. He availed numerous opportunities from the Public Court at Makkah to provide proof regarding payment of the amount but failed. The suit was decreed in favour of the respondents/plaintiffs on 04.03.1439 Hijri and the petitioner was ordered to pay 27500/- Saudi Riyal to respondent /plaintiff No.1 as well as 44094 Saudi Riyal to respondent/plaintiff No.2. Thereafter, the petitioner absconded himself from Saudi Arabia and reached back Pakistan. Petitioner has been

asked time and again to pay 71,594 Riyal or Rs.22,62,244/- to the respondents / plaintiffs but he refused which gainsayal resulted into filing of the suit. Petitioner /defendant appeared and filed contesting written statement. Out of divergent pleadings of the parties, issues were framed and evidence was recorded. The trial court decreed the suit of respondents/plaintiffs vide judgment & decree dated 28.10.2023. Against the said decree, the appeal of the petitioner was dismissed by the appellate court vide judgment & decree dated 27.01.2025. Hence, this Civil Revision.

3. Arguments heard and record perused.

4. The main controversy revolves around issue No.1 which is as under:-

Whether the plaintiff is entitled to recover Rs.2,262,244/- (Rs.71594 Saudi Riyal) from defendant as prayed for in his plaint? OPP

In order to prove the asserted stance in the plaint, Fazal Fareed (one of the plaintiffs) appeared as PW1 who stated that he went to Saudi Arabia about 8/10 years ago for ceiling work. Defendant/Niaz Hussain provided him visa against Rs.4/5 lacs. They jointly started work/business with Niaz Hussain at three mansions (Kothi) having 05/05 storey each and the contract (ٹھیکہ) of ceiling work was settled @ 100 Riyal per meter. They all three got contract with the undertaking and half work

would be done by Niaz Hussain and rest half by them. They completed the requisite work but the defendant did not pay the profit amount to them. Riaz Ahmad, plaintiff No.2 appeared as PW2 and produced attested copy of decree dated 04.03.1439 Hijri as Exh.P1 and its Urdu translation as Exh.P2 in his statement and supported the contents of the plaint.

On the other hand, Niaz Hussain/defendant appeared as DW1 who denied giving of visa to the plaintiffs as well any joint business with them. In cross examination, he deposed that:-

میں سعودی عرب میں بلڈنگ لائن سیلنگ وغیرہ کا کام کرتا ہوتا۔۔۔۔۔ نومبر سال 2017 میں میرے خلاف سعودی عدالت کے فیصلہ کا علم نہ ہے۔ یہ غلط ہے کہ اس فیصلہ کے تحت -/27500 سعودی ریال مدعی نمبر 1 افضل منیر کے حق میں اور 44094 سعودی ریال مدعی نمبر 2 ریاض احمد کے حق میں ڈگری ہوئے۔ میں نے نومبر 2017 کی فیصلہ کے خلاف کسی بھی عدالت میں اپیل نہ کی ہے۔۔۔۔۔ یہ درست ہے کہ عدالت میں حاضر ہونے کے بعد غیر حاضر ہونے کی بناء پر مجھے کل پانچ مرتبہ ہرجانہ جرمانہ ہو چکا ہے۔

Shaukat Abbas (DW2) in his cross examination deposed that:-

یہ درست ہے کہ مجھے مدعیان اور مدعا علیہ کے درمیان لین دین کے بارے میں پتہ نہ ہے۔ مجھے آج گواہی دینے نیاز ساتھ لایا ہے۔ مجھے گواہی کسی نے نہ سمجھائی ہے۔
(emphasis supplied)

5. Admittedly, a civil lis was instituted against the petitioner in the competent Court at Makkah al-Mukarramah and the petitioner joined the proceeding before the said Court, submitted his available defenses and thereafter a decree was passed against him and same is still intact. That once he has submitted to the jurisdiction of the Court at Makkah al-Mukarramah without any objection, thereafter the decision rendered by the said Court is binding. Record further shows that decree dated 04.03.1439 Hijri (Ex.P1) was passed by the competent Court of Al-Mabha against the petitioner which is still in field as the petitioner has never challenged the same. Under Section 13 C.P.C. the process of foreign decree is provided and under Sections 13 & 14 C.P.C. the presumption of validity / truth is attached to the foreign decree. The petitioner/defendant did not utter even a single word that decree has been passed against him. He admitted in his cross examination that he did not file any appeal against the said money decree against him and even he did not raise any objection relating to aforesaid exceptions as provided in section 13 C.P.C. Reliance in this regard is placed on a judgment titled as Muhammad Ramzan (deceased) through L.Rs. and others Vs. Nasreen Firdous and others (PLD 2016 SC 174) wherein the Hon'ble Supreme Court of Pakistan has held as under:

“13.....Additionally, it may be mentioned that the courts in Pakistan should respect and give effect to (subject to certain exceptions), the judicial decisions of other countries on the same subject under the principle of 'judicial comity. While acknowledging the doctrine of

judicial comity, Mark Janis, (An Introduction to International Law 327 2003) noted that:-

Roughly speaking, courts, according to the doctrine of international judicial comity, should apply foreign law or limit domestic jurisdiction out of respect for foreign sovereignty.

The doctrine of judicial comity, being recognized and applied in the courts around the globe, was correctly acknowledged by the Lahore High Court in the case of Louise Anne Fairley v. Sajjad Ahmed Rana (PLD 2007 Lahore 300).

The view that Pakistan should respect and give effect to the judicial decisions of other countries finds further support from section 13, C.P.C. which reads, in so far as it is material, as under:-

"13. When foreign judgment not conclusive.-- A foreign judgment shall be conclusive as to 'any matter thereby directly adjudicated upon between the same parties or between parties under whom they or any of them claim litigating under the same title except-

(a) Where it has not been pronounced by a Court of competent jurisdiction;

(b) Where it has not been given on the merits of the case;

(c) Where it appears on face of the proceedings to be founded on an incorrect view of International Law or a refusal to recognize the law of Pakistan in cases in which such law is applicable;

(d) Where the proceedings in which the judgment was obtained are opposed to natural justice;

(e) Where it has been obtained by fraud;

(f) Where it sustains a claim founded on a breach of any law in force in Pakistan”

It is clear that foreign judgments are conclusive as to any matter thereby adjudicated upon and Pakistani

courts must recognize and enforce the same. However, before enforcing any foreign judgment, a Pakistani court will have to ensure that it does not fall within any of the exceptions contained in section 13, C.P.C. For example, a Pakistani Court may not consider a foreign judgment to be conclusive if it has been pronounced by a Court of incompetent jurisdiction. In order to ascertain whether a judgment has been pronounced by a Court of competent jurisdiction, Pakistani courts will necessarily have to examine the principles of private and public international law to determine whether the subject matter of the foreign judgment fell within the jurisdiction of the foreign Court. If the judgment is found to have been pronounced in excess of the foreign Court's jurisdiction in view of the parallel body of law, that is, private international law, it will be deemed to have not been pronounced by a court of competent jurisdiction rendering the judgment inconclusive.”

In a judgment titled as Abdul Ghani Vs. Haji Saley Mohammad [PLD 1960 (W.P.) Karachi 594] it has been held that:

“It will be observed that under this provision of law a foreign judgment is conclusive as to any matter thereby directly adjudicated upon between the parties or between parties under whom they or any of them claim litigating under the same title except amongst other grounds (not relevant to the present case) where it has not been given on the merits of the case. The principle laid down in section 13 (b) is no doubt against the general principle that a State is not bound under the law of nations to enforce in its territories the judgment of a foreign tribunal. But in countries where the English system of jurisprudence is adopted foreign judgment is enforced on the principle that where a Court of competent jurisdiction has adjudicated the liability of a certain party a legal obligation arises to meet it and that an action to enforce the judgment is maintain able. This principle has been recognised in section 13 of the C.P.C.”

Another reliance is placed on a judgment titled as Messrs Farms and Foods International through Attorney Vs. Hamid Mahmood (2006 CLC 492) the relevant portion whereof is reproduced as under:

“Section 13 of the C.P.C. gives right to the plaintiff to institute the suit in Pakistan on the basis of foreign

judgment treating it as a cause of action. The suit can only be filed on the basis of such foreign judgment, which is conclusive between the parties and not falling within the exception of section 13 of C.P.C. In the written statement legal pleas were taken but it was not stated that the judgment is covered by the exception of section 13, C.P.C. Under section 13, C.P.C. a foreign judgment is not enforceable per se but a suit on its basis has to be filed though it is conclusive with respect to a matter adjudicated upon between the parties subject to exception of section 13 of C.P.C. For filing a suit under section 13, C.P.C. the existence of a decree is essential as the basis of the action and that has to be one that is final and conclusive between the parties so as to operate as res judicata. In the case of Emirates Bank International Ltd. v. Messrs Oosman Brothers and 9 others 1990 MLD 1779 the Court has held that suit can be filed in Pakistan on the basis of foreign judgment treating it as the cause of action if the conditions prescribed in section 13, C.P.C. are fulfilled. The judgment is conclusive between the parties otherwise it is res judicata between them and the Courts in Pakistan are bound by its findings.”

In a judgment titled as Habib Bank Ltd. Vs. Messrs Virk House Trading Company Ltd. (2009 CLD 451) it has been held as under:

“6....Section 13 of C.P.C. recognizes the enforceability of a foreign judgment in Pakistan provided it fulfils the conditions enumerated therein, namely:--

- (i) it has been pronounced by a Court of competent jurisdiction;
- (ii) it has been given on the merits of the case;
- (iii) it is founded on correct view of international law, or does not amount to refusal of recognized applicable law of Pakistan;
- (iv) proceedings in which judgment was obtained are not opposed to principles of natural justice;
- (v) it has not been obtained through fraud; and
- (vi) it does not sustain a claim founded on breach of any law in force in Pakistan.

A foreign judgment, which complies with the above conditions is binding when the matter adjudicated upon was directly adjudicated between the same parties.

Reliance is this regard is also placed on a judgment titled as Wali Khan Vs. Ali Muhammad (PLD 2017 Peshawar 1).

6. Moreover, the petitioner failed to prove his case through evidence whereas the respondents/plaintiffs proved their case through concrete, affirmative, corroborative and solid evidence. The depositions of DW2 are mere based on hearsay evidence which has narrow scope of intrinsic value until and unless the said asserted fact has been proved through other corroborative and independent evidence, whereas Article 71 of Qanun-e-Shahadat Order, 1984 also requires direct oral evidence and oust the admissibility of hearsay evidence. Reliance is placed on the cases cited as Gulzar Ahmad & Others Vs. Muhammad Anwar & Others (2003 SCMR 1008) and Abdul Qayyum Vs. Muhammad Sadiq (2007 SCMR 957).

7. Moreover, this Court vide order dated 08.07.2025 passed restraining order subject to deposit of half of the decretal amount with the executing court within one month but said order has not been complied with which shows chronic contumacious conduct of the petitioner who has been playing mischief with sacrosanct process of law.

8. Learned counsel for the petitioner has neither pointed out any illegality or material irregularity, in the impugned judgments & decrees passed by the Courts

below nor identified any jurisdictional defect. The concurrent findings of fact are against the petitioner which do not call for any interference by this Court in exercise of its revisional jurisdiction. Reliance is placed on the case titled as Mst. Zaitoon Begum Vs. Nazar Hussain & Another (2014 SCMR 1469).

9. In view of above, this Civil Revision is hereby **dismissed** being devoid of any merits with cost throughout as well as with special cost of Rs.500,000/- which shall be recovered as money decree in favour of the respondents / plaintiffs.

(CH. MUHAMMAD IQBAL)
JUDGE

Approved for reporting.

JUDGE

Shahzad Mahmood /
Abdul Hafeez